

Tentative Rulings for July 1, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. VS HOOVER	MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF FORM INTERROGATORIES [SET ONE]

Tentative Ruling: Moot

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2016.040, 2030.300, subd. (b).) The factors in determining whether a party made a “reasonable” and “good faith” attempt to resolve the issues informally may include the size of case, complexity of discovery, previous relations with opposing counsel, the nature of the issues, the type and scope of discovery requests, the time available before the motion filing deadline and the prospects for success of the meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.) A single letter followed by a response of refusal may be sufficient in certain circumstances to constitute a proper meet and confer. (*Id.* at 432.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compares their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.)

On December 23, 2025, Movants served their discovery requests on the Hoovers. (Hoggard Decl., ¶3, Exh. A.) The Hoovers served verified responses and objections on March 10, 2026. (*Id.* at ¶4, Exh. B.) Movants’ attorney, Mr. Hoggard, sent an email to and left three voicemails with the Hoovers’ counsel but as of the date of the filing of the motion, there has been no response. (*Id.* at ¶¶5-6.) Defendant’s efforts were reasonable and in good faith.

The Hoovers’ attorney, Mr. Mellor, confirmed the communication attempts by Mr. Hoggard. (Mellor Decl., ¶¶6, 8-9.) Despite this, Mr. Mellor argues the meet and confer efforts were not made in good faith because Mr. Mellor was engaged in trial. (*Id.* at ¶¶6-9.) Mr. Mellor believes the motion to compel is untimely filed; thus Movants waived its right to compel further responses and the discovery disputes are moot. (*Id.* at ¶¶10-11.) Mr. Mellor maintains he would have engaged in meet and confer efforts had movants initiated efforts earlier than April 21. (*Id.* at ¶12.)

Hearing on June 3, 2026.

Based on the foregoing, the Court held that attorney Hoggard being in trial does not absolve him from meet and confer responsibilities. Accordingly, the Court continued hearing on the motion and ordered the parties to meet and confer and file a separate joint statement for both motions no later than 10 days prior to the continued hearing date of July 1, 2026. (6/3/2026 Ruling.) The Court ordered each joint statement to

outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties' respective positions. (*Ibid.*)

I. Legal Standard

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The motion for order to compel further responses must be served within 45 days of service of verified responses, plus the additional time if not personally served. (Code Civ. Proc., §§ 2030.300, subd. (c), 1010.6, subd. (a)(4); 1013.) If the responses are objections only, they are treated as verified responses with respect to the 45-day limit, but if the responses are a combination of both unverified responses and objections then the 45-day period does not start as the statute setting forth the time limit requires verification of hybrid responses. (*Gold & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 131, 136.) When the 45-day period applies, the demanding party waives the right to compel any further response if not timely filed. (Code Civ. Proc., §§ 2031.310, subd. (c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) The 45-day time limit is mandatory and "jurisdictional" such that the Court has no authority to grant a late motion. (*Sexton v. Superior Court (Millikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410 [late filed motion to compel must be denied where objection raised at hearing even if omitted from opposition papers].) However, the deadline can be extended upon written agreement by the parties. (See Code Civ. Proc., § 2031.310, subd. (c).)

Here, it is undisputed the Hoovers served verified responses to the FROGs and RFPs on March 10, 2026.

In compliance with the Court's order, on June 22, 2026, the parties timely filed a Joint Statement stating the parties met and conferred on July 17, 2026 (sic) via telephone with respect to each FROG and RFP in dispute. Hoover agreed to serve supplemental verified written responses and documents to FROG Nos. 305.4, 305.5 (a) & (b), 311.1, and 311.3 and RFP Nos. 37, 38, 39 and 54 by July 15, 2026. FROG No. 314.1 remains in dispute but "Defendant, Cross-Complainant will agree to amend the response." (Joint Sep. Stmt., pg. 2:20-21.)

Based on the foregoing, it appears the motions are now **MOOT**.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. VS HOOVER	MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR DOCUMENTS AND THINGS (SET ONE)

Tentative Ruling: See #1 above. Moot.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405636	DREVDAHL VS THE FOXHALL EVENT COMPANY LLC	MOTION TO COMPEL

Tentative Ruling: Moot.

The motion is moot. Deny Plaintiff's request for sanctions. Grant Defendant's request for sanctions under CCP § 2023.030 in a reasonable amount. The request for sanctions under CCP § 128.5 is denied.

Both sides agree that responses to special interrogatories have been provided. As such, this motion is moot as to everything but sanctions. Plaintiff asserts that two of the responses (out of 54) are improper because they contain objections. However, this issue should be addressed through a meet and confer.

The parties also both rely on CCP § 2023.010 for sanctions. This code section defines what constitutes a misuse of discovery. A misuse of a discovery process includes seeking to obtain materials outside of the permissible scope of discovery; using discovery methods in improper ways; using discovery to annoy, embarrass, oppress, or to create undue burden or expense; failing to respond to discovery; asserting unmeritorious objections; providing evasive responses; disobeying orders; making or opposing motions without substantial justification; and failing to properly meet and confer. (CCP § 2023.010.) CCP § 2023.030 provides that the court may award monetary sanctions against anyone engaged in conduct that constitutes a misuse of the discovery process. Defendant's counsel provides evidence that he did not "promptly" receive the discovery requests at issue because Plaintiff failed to list counsel's name when they were mailed and he was not aware of the discovery until May 26, 2026. (Declaration of Parker Kindley, ¶¶ 6 and 8.) Before the opposition was filed in this matter, Defendant's counsel made Plaintiff's counsel aware of the service issue. (*Id.* at ¶ 11.) Plaintiff refused to withdrawal this motion, even though responses were provided on June 8, 2026. (*Id.* at ¶ 10.) Due to this service issue, imposing sanctions against Defendant is not warranted. It does not appear that the delay in discovery response was done intentionally. The request is denied.

Before the opposition was filed, Defendant informed Plaintiff of the service issue. Responses were received by this time. Instead of agreeing to take this matter off calendar, Plaintiff moved forward with this motion, even though they obtained the relief they sought. This conduct was not reasonable. Doing so created unnecessary expense. The Court is granting Defendant's request for sanction under CCP § 2023.030 in a reasonable amount. The time spent on this matter appears excessive. The Court will grant sanctions in the amount of \$814 (3.7 hours x \$220).

Defendant also seeks sanctions under CCP § 128.5. This request is improper. A motion for sanctions under CCP § 128.5 must be brought as a separate motion, which has not occurred. (CCP § 128.5(f)(1)(A).) Additionally, there is a 21-day safe harbor period that must be complied with, which also has not occurred. (Id. at (f)(1)(B).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503929	TAYLOR VS KIA CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Sustain demurrer, 30 days leave to amend.

CCP §430.41 and §435.5 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The motion is accompanied by the declaration of Attorney David Ter-Petrosyan who spoke with Plaintiff via telephone on April 27, 2026. He then exchanged emails with Plaintiff regarding her willingness to potentially amend the pleadings. This satisfies the meet and confer requirement.

I. Standard on Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

II. Special Demurrer – Uncertainty

Defendant argues the FAC is uncertain because it references two separate and distinct entities – Kia Corporation and Kia America, Inc. The meet and confer

declaration demonstrates Plaintiff was willing to amend the FAC to correct this issue. (Ter-Petrosyan Decl. ¶¶ 5, 9.) Plaintiff's Opposition indicates she still remains willing to address this issue via amendment. This issue is easily resolved via amendment.

Sustain with leave to amend.

III. General Demurrer – Sufficiency of Allegations

Plaintiff alleges a strict products liability claim. "The elements of a strict products liability cause of action are a defect in the manufacture or design of the product or a failure to warn, causation, and injury. More specifically, plaintiff must ordinarily show: (1) the product is placed on the market; (2) there is knowledge that it will be used without inspection for defect; (3) the product proves to be defective; and (4) the defect causes injury." (*Nelson v. Superior Court (Exxon Mobil Corporation)* (2006) 144 Cal.App.4th 689, 695.) "In products liability cases, a consumer injured by a defective product may sue any business entity in the chain of production and marketing, from the original manufacturer down through the distributor and wholesaler to the retailer; liability of all such defendants is joint and several." (*Kaminski v. Western MacArthur Co.* (1985) 175 Cal. App. 3d 445, 455-456.) The doctrine of strict liability applies to the production and distribution of products in the stream of commerce, but does not apply to transactions whose primary objective is to provide services. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal. App. 3d 340, 344.)

The FAC does not allege which products liability theory Plaintiff is pursuing – design defect, manufacturing defect, or failure to warn. The FAC does not allege the car was defective due to a design, manufacturing, or failure to warn defect. Plaintiff alleges the fire originated from the "front engine area" and was caused by an "overhead starter," but the FAC does not allege that those issues stem from a design, manufacturing, or failure to warn defect. Ultimately, more facts are needed to properly state this claim.

Sustain with leave to amend.

IV. Economic Loss Rule

The economic loss rule bars "a plaintiff's tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e. personal injury or property damage.)" (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.) Under the economic loss rule, "where a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) Quite simply, the economic loss rule prevents the law of contract and the law of tort from dissolving one into the other. (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.) "[E]conomic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property." (*Food Safety Net Services v. Eco Safe*

Systems USA, Inc., supra, 209 Cal.App.4th at 1130, fn. 4, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.)

Defendant is correct that the FAC only alleges damage to the car itself. The FAC alleges: “Plaintiff suffered property and financial damages as [a] result of the vehicle fire, including total loss of the vehicle, towing and storage fees, loss of transportation, and related economic hardship. No personal injuries occurred.” (§16.) Plaintiff only alleges economic damages. For this reason, the demurrer is sustained with leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504096	AMERICAN UNITED FEDERAL CREDIT UNION VS HERNANDEZ	MOTION FOR ORDER TO SEAL DOCUMENT(S)

Tentative Ruling: Grant. No opposition.